

House File 639

H-1185

1 Amend House File 639 as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 6A.21, subsection 1, Code 2025, is
4 amended to read as follows:

5 1. Except as otherwise provided, for purposes of this
6 chapter and [chapter 6B](#):

7 *a. "Aboveground merchant line" means "merchant line" as*
8 *defined in [section 478.6A, subsection 1](#), excluding those*
9 *merchant lines that are underground.*

10 *b. "Agricultural land" means real property owned by a person*
11 *in tracts of ten acres or more and not laid off into lots of*
12 *less than ten acres or divided by streets and alleys into*
13 *parcels of less than ten acres, and that has been used for*
14 *the production of agricultural commodities during three out*
15 *of the past five years. Such use of property includes, but*
16 *is not limited to, the raising, harvesting, handling, drying,*
17 *or storage of crops used for feed, food, seed, or fiber; the*
18 *care or feeding of livestock; the handling or transportation*
19 *of crops or livestock; the storage, treatment, or disposal*
20 *of livestock manure; and the application of fertilizers,*
21 *soil conditioners, pesticides, and herbicides on crops.*
22 *Agricultural land includes land on which is located farm*
23 *residences or outbuildings used for agricultural purposes and*
24 *land on which is located facilities, structures, or equipment*
25 *for agricultural purposes. Agricultural land includes*
26 *land taken out of agricultural production for purposes of*
27 *environmental protection or preservation.*

28 *c. "Commodity" means a product that is used by an individual*
29 *consumer or is used to produce a product used by an individual*
30 *consumer.*

31 *d. "Common carrier" means a commercial enterprise that holds*
32 *itself out as ready to engage in the transportation of goods*
33 *or passengers for hire, as a public employment, and not as a*
34 *casual occupation, and that undertakes to carry for all persons*
35 *indifferently, within the limits of the enterprise's capacity*

1 and the sphere of business required of it. For a carrier
2 engaged in the transportation of a hazardous liquid to qualify
3 as a common carrier, the carrier must establish by clear and
4 convincing evidence that it will transport a commodity for
5 one or more shippers not affiliated with the carrier who
6 will either retain ownership of the commodity or sell the
7 commodity to a party other than the carrier. A common carrier
8 determination by the federal energy regulatory commission shall
9 be controlling for purposes of this paragraph.

10 ~~e.~~ e. "*Private development purposes*" means the
11 construction of, or improvement related to, recreational
12 trails, recreational development paid for primarily with
13 private funds, aboveground merchant lines, housing and
14 residential development, or commercial or industrial enterprise
15 development.

16 ~~d.~~ f. "*Public use*" or "*public purpose*" or "*public*
17 *improvement*" does not include the authority to condemn
18 agricultural land for private development purposes unless the
19 owner of the agricultural land consents to the condemnation.

20 Sec. _____. Section 6A.24, Code 2025, is amended by adding the
21 following new subsection:

22 NEW SUBSECTION. 4. Notwithstanding subsection 3, an
23 acquiring agency proposing to acquire property by eminent
24 domain pursuant to a grant under chapter 479B shall have the
25 burden of establishing by clear and convincing evidence that
26 the proposed use meets the definition of a public use, public
27 purpose, or public improvement.>

28 2. Page 1, after line 23 by inserting:

29 <Sec. _____. Section 479B.16, subsection 1, Code 2025, is
30 amended to read as follows:

31 1. A pipeline company granted a pipeline permit shall,
32 subject to subsection 4, be vested with the right of eminent
33 domain, to the extent necessary and as prescribed and approved
34 by the commission, not exceeding seventy-five feet in width for
35 right-of-way and not exceeding one acre in any one location in

1 addition to right-of-way for the location of pumps, pressure
2 apparatus, or other stations or equipment necessary to the
3 proper operation of its pipeline. The commission may grant
4 additional eminent domain rights ~~where~~ when the pipeline
5 company has presented sufficient evidence to adequately
6 demonstrate that a greater area is required for the proper
7 construction, operation, and maintenance of the pipeline or for
8 the location of pumps, pressure apparatus, or other stations or
9 equipment necessary to the proper operation of its pipeline.

10 Sec. _____. Section 479B.16, Code 2025, is amended by adding
11 the following new subsection:

12 NEW SUBSECTION. 4. A pipeline company granted a pipeline
13 permit shall not be vested with the right of eminent domain
14 unless the pipeline company is a common carrier, as defined in
15 section 6A.21.

16 Sec. _____. EFFECTIVE DATE. This Act, being deemed of
17 immediate importance, takes effect upon enactment.

18 Sec. _____. APPLICABILITY. This Act applies to condemnation
19 proceedings for which the application filed under section 6B.3
20 is filed on or after the effective date of this Act.>

21 3. Title page, line 1, after <relating to> by inserting
22 <hazardous liquid pipelines, including common carrier
23 requirements and>

24 4. Title page, line 2, by striking <permit.> and inserting
25 <permit, and including effective date and applicability
26 provisions.>

27 5. By renumbering as necessary.

HOLT of Crawford